

18. 9:01 AM CASE NUMBER: C26-00396
CASE NAME: ALLYSON LONEY VS. SCOTT BERGEN
*HEARING ON MOTION FOR DISCOVERY STAY DISCOVERY
FILED BY: BERGEN, SCOTT
TENTATIVE RULING:

Before the court is the motion of Defendants Scott Bergen and Stokely Properties, Inc. (Defendants) for an Order Staying Discovery and Monetary Sanctions, filed August 11, 2026.

The court finds that moving party has not fulfilled its meet and confer obligation as to the instant motion. Moving party attached a letter describing the Plaintiffs' counsel's failure to meet and confer about a proposed Demurrer. However, the letter did not invite any meeting or conferring about a temporary stay on discovery pending the hearing of a demurrer. It simply recited that the Plaintiffs had previously refused to meet and confer about Plaintiffs' recently propounded discovery, demanded that the propounded Discovery be withdrawn, and threatened that if Defendants did not receive confirmation that the Discovery had been withdrawn, the Defendants would move for a protective order. See Exhibit A, attached to Declaration of Melissa Wood, filed August 11, 2026.

The court fails to see what is excessive, burdensome or oppressive about the Plaintiffs' currently propounded discovery requests. The Defendants list Form Interrogatories, Set One, Special Interrogatories, Set One, Requests for Admissions, Set One, and Request for Production of Documents, Set One. Defendants assert no complaint about the numerosity of the requests or their form.

The "prior action" was dismissed on October 24, 2023 by the Court's issuance of termination sanctions for the Plaintiffs' lack of compliance with Discovery. On November 8, 2024, this court denied the Plaintiff's motion to set aside the October 24, 2023 order pursuant to Section 473(b) of the Code of Civil Procedure. The case remained dismissed.

Plaintiffs filed the instant action on February 4, 2026.

Defendants assert that the currently propounded discovery is excessive because "it addresses claims that were pleaded in the Original Complaint that has been dismissed." (Memorandum of Points and Authorities in Support of Defendants' Motion to Stay Discovery and Monetary Sanctions, filed August 11, 2026, 4: 8-14.) The court notes that the prior action was not dismissed on its merits, but rather as part of a discovery sanction against the Plaintiffs for non-compliance. Plaintiffs observe that the prior action "was not dismissed with prejudice." That appears to be correct. There does not appear to a reason why the terminating sanctions imposed for non-compliance with discovery in the prior action would preclude discovery in a refiled case.

The motion for a stay of discovery is **denied**. The request for sanctions is also **denied**.

Issue Conferences

19. 10:00 AM CASE NUMBER: C22-01881
CASE NAME: ALLYSON MCGEE VS. DOES 3-50
HEARING IN RE: INFORMAL DISCOVERY CONFERENCE
FILED BY:

TENTATIVE RULING:

Parties to appear.

Courtroom Clerk's Session

20. 1:30 PM CASE NUMBER: MSC22-00300
CASE NAME: AZAMEY VS CARAPIA
ISSUE CONFERENCE WITH THE COURT (ALL COUNSEL AND PARTIES WITH LEGAL AUTHORITY ARE
REQUIRED TO APPEAR IN PERSON
FILED BY:

TENTATIVE RULING:

Parties to appear.